

25STCV35202 25STCV35202

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-29

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Case Number: 25STCV35202 Hearing Date: July 29, 2026 Dept: 9

Preliminary Approval of Class Action

Settlement

Department SSC-9

Hon. Elaine Lu

Daniel Laney, et al. v. EmCentrix Inc.

Case

No.: 25STCV35202

Hearing: July 29, 2026

TENTATIVE RULING

Plaintiff's Motion for Preliminary Approval of Class Action Settlement is
CONDITIONALLY GRANTED CONTINGENT on Counsel
adequately addressing the following items:

1)

Provide the sworn declaration of

Plaintiff Rachel Greenbaum regarding any interest or involvement (or lack thereof) in the governance or work of the proposed cy pres recipient.

2)

Why is the language in ¶¶107(d), 120,

and 145 regarding enjoining Plaintiffs from asserting or prosecuting any of the

Released Claims proper? (See *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 84. (“[T]he preclusive effect of a prior judgment is determined by the court in which it is asserted, not the court that rendered it.” (Fireside Bank Cases (2010) 187 Cal.App.4th 1120, 1131.))) The court will not issue injunctive relief against Plaintiffs. The effectiveness of the release comes from satisfaction of due process requirements for notice and an opportunity to opt out or be heard. Ensure that all references to such an injunction are removed from the Settlement Agreement.

3)
Modify the effective date of the release to occur on the date on which Defendant fully funds the settlement (rather than the “Funding Date”).
(¶¶117-118, 120)

4)
Postcard Notice (Exhibit 1): Clarify that the total amount of the Service Award is \$10,000.

5)
Long Form Notice (Exhibit 2): Please remove release language that pertains to only Plaintiffs/Class Representatives to avoid confusion.

6)
Please ensure that the Class Notices -- both Postcard Notice and Long Form Notice – are modified to match any alterations to the Settlement Agreement.

7)
Please ensure that the revised Settlement Agreement has been signed by all parties and Counsel.

If the Settlement Agreement and Class Notice are modified pursuant to this checklist, please submit both (1) a red-lined copy highlighting changes made from the current Settlement and Notice as well as (2) a clean final version signed by all parties. Both versions must be fully text searchable. Do not submit

an addendum in lieu of a full amended settlement agreement including all operative settlement terms.

Counsel must file, serve, and upload to CaseAnywhere text searchable supplemental documents correcting the above issues by no later than August 19, 2026.

A Non-Appearance Case Review is set for August 26, 2026, at 8:30 a.m., Department 9.

If the Court is satisfied that the parties have adequately addressed all of the above issues in their supplemental documents, then the Court may grant Plaintiff's Motion for Preliminary Approval at the August 26, 2026 Non-Appearance Case Review.

Plaintiff is ordered to give formal notice to all parties and file proof of service of such within 5 days.